STATEMENT OF WITNESS UNDER SECTION 161 Cr.P.C. / SECTION 180 BNSS, 2023
POLICE STATION: EOW, Mandir Marg, New Delhi | FIR NO: 0412/2024
DATE OF EXAMINATION: 22/08/2024 | INVESTIGATING OFFICER: SI Devendra Chawla
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WITNESS IDENTIFICATION:
Name: Sameer Verma, S/o Sh. V. K. Verma, Age: 39 Years
Designation: Chief Technology Officer, Zenith Cloud Technologies Pvt. Ltd., New Delhi.

WITNESS TESTIMONY & TECHNICAL DEFENCE:
I am the CTO of Zenith Cloud Technologies Pvt. Ltd. and oversaw software architecture.
I categorically deny any conspiracy, fraudulent misrepresentation, or cheating.
Between January 2024 and June 2024, our 18-member engineering team built over 85,000 lines of modular Go and Python microservices for Apex FinTech's algorithmic clearing engine.
The staging code was deployed on AWS Singapore instances with full CI/CD access provided to Apex engineers.

REGARDING THE THIRD-PARTY ESCROW DEPOSIT:
CertiGuard Labs was an independent technical compliance audit firm recommended by our international partners.
We submitted the complete SHA-256 cryptographic hash of the source code repository to CertiGuard on 02/02/2024.
The escrow confirmation receipt was issued legitimately after cryptographic verification.
We never suppressed any source code; in fact, on 08/08/2024, we sent a formal email offering full repository transfer subject to Apex settling the outstanding AWS infrastructure hosting invoice of INR 68,50,000/-.

REGARDING THE EVENTS OF 10/08/2024:
On 10/08/2024 at 11:30 AM, Mr. Singhania and Mr. Gupta arrived unannounced and demanded instant master root keys.
Mr. Malhotra explained that root keys could only be delivered upon signing the UAT handover and indemnity waiver.
Mr. Singhania became infuriated, swept items off the conference table, and accidentally grazed his wrist against the sharp aluminium border of an open presentation easel.
No employee of Zenith touched Mr. Singhania. CCTV footage of the boardroom foyer confirms this fact.
The dispute is strictly a commercial contractual dispute governed by the DIAC arbitration clause in our agreement.
Sd/- Sameer Verma (Witness / CTO).